

favor of staying the state court action in favor of the Federal action.” (See *Caiafa, supra*, at p. 804; see also *Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 747.)

Mr. Keener’s Request for Judicial Notice is GRANTED as to Exhibit 4. The Court takes judicial notice of Mr. Keener’s Notice of Motion to Stay Federal Proceedings filed in the Federal Action on May 7, 2026, but not for the truth of any matters set forth therein.⁷ The Court agrees with Mr. Keener that the U.S. District Court’s ruling on the pending Federal Motion may well impact the ongoing relevance and applicability of, and/or this Court’s analysis of, the instant Motion. The Court notes that, just as the Federal Action was filed prior to the instant action, the Federal Motion was filed prior to the instant Motion.

Based on the foregoing, the Court finds that the interests of justice, judicial economy, and comity are served by hearing and resolving the instant motion after resolution of the Federal Motion.

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Vladimir Privalov v. Villa Zinfandel LLC et al

26CV000675

DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to July 31, 2026, at 8:30 a.m. in Dept. B. The Court has reviewed Defendant’s Notice of Non-Service of Opposition, which asserts that it did not receive any opposition from Plaintiff and requests that any opposition be disregarded. The Court notes that there is an opposition on file, accompanied by a Proof of Service showing timely service on Defendant. Thus, the Court declines to grant Defendant’s request to disregard the Opposition. Rather, Plaintiff is ordered to immediately serve, no later than 4:00 p.m. on July 10, 2026, the file-endorsed copy of his opposing papers. Defendant is granted leave to file and serve, no later than 4:00 p.m. on July 17, 2026, a Reply.

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Thomas Kensok et al v. Alison A. Barstad

26CV000834

MOTION TO VACATE STAY OF PROCEEDINGS

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

⁷ The Court defers ruling on the remaining subjects of Mr. Keener’s Request for Judicial Notice until such time as those subjects become relevant. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed.” [Citation.]”].)